

SENATE No. 1338

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia D. Jehlen

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to employee definition harmonization.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>9/4/2025</i>

SENATE No. 1338

By Ms. Jehlen, a petition (accompanied by bill, Senate, No. 1338) of Patricia D. Jehlen for legislation relative to employee definition harmonization. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1190 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to employee definition harmonization.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 2 of chapter 151A of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by striking out subsection (b) and inserting in place thereof the following
3 subsection:-

4 (b) such service is performed outside the usual course of the business of the employer;
5 and